

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

5. S-CV-0045236 RODRIGUEZ, JEFFREY v. JONES, GHAZALA

This tentative ruling is issued by the **Honorable Jeffrey S. Penney**. If oral argument is requested, it shall be heard on **Friday, May 22, 2026, at 1:30 p.m. in Department 44**.

Plaintiffs' Motion for an Award of Attorneys' Fees

Plaintiffs move for an award of attorneys' fees as the prevailing party pursuant to the attorney's fee provision in the sales contract in the amount of \$1,106,325.56. (Civ. Code, § 1717, subd. (b)(1); Code Civ. Proc., § 1032, subd. (a)(4).)

The sales contract provides "ATTORNEY FEES: In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 22A." (Rodriguez Dec'l, Ex. 1-A.) Section 22A requires the complaining party to attempt or actually mediate the action before proceeding with litigation or arbitration. Plaintiffs satisfied this requirement.

On April 16, 2026, the court determined plaintiffs were the prevailing parties. Thus, attorneys' fees are proper here.

The court must address whether the request for \$1,106,325.56, which includes a 2.0 multiplier for Kane St. John's legal services, is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, "[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement." (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel Kane St. John. The court finds the hourly rate of \$400 is reasonable for Kane St. John for similar legal services within Placer County. However, the court finds no multiplier is warranted here.

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The court has carefully reviewed the declaration of counsel Eric Jeppson. The court finds the hourly rate of \$400 for Eric Jeppson and \$300 for Marc Guedenet are reasonable for similar legal services within Placer County.

The court has carefully reviewed the declaration of counsel Lenden Webb. The court finds the requested hourly rate of \$361 for Sydney Becker and Stella Nguyen are reasonable for similar legal services within Placer County.

The court has carefully reviewed the declaration of counsel Jeff Reich. The court finds the requested hourly rate of \$395 for Jeff Reich and \$150 for Sona Vartanian are reasonable for similar legal services within Placer County.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declarations of counsel above and any invoices attached thereto.

The court determines that 500 hours are reasonable for Kane St. John; 14.8 hours are reasonable for Eric Jeppson; 55.4 hours are reasonable for Marc Guedenet; 119.17 combined hours are reasonable for Sydney Becker and Stella Nguyen; 31 hours are reasonable for Jeff Reich; and 9.25 hours are reasonable for Sona Vartanian.

The \$1,797.66 in costs requested by Eric Jeppson and \$1,154 in costs requested by Jeff Reich are reasonable.

In sum, plaintiffs' motion is granted and the court awards plaintiff's attorney's fees in the amount of \$278,082.37 and costs in the amount of \$2,951.66 for a total award of \$281,034.03.

6. S-CV-0047684 TRIMONT LAND COMPANY v. NORTHSTAR VILLAGE

Case Management Conference

The case management conference is continued to **August 20, 2026, at 8:30 a.m. in Department 3**. A review of the court record reflects no proposed order for the parties' stipulated stay has been filed with the court despite the parties' indications a further stay may be requested.

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